

2025CUBC049232: MARIA SUSANA DEL RUTH vs JIANLING FANG, et al.
08/20/2026 in Department 42
Motion For Order Authorizing Service of Summons

TENTATIVE

For the reasons set forth herein, the Court's Tentative is to DENY the Motion.

Background/Overview

Plaintiff (through counsel) filed a Complaint against Jianling Fang, Jinrui Zhang, Oak Summit Real Estate, Inc. and Shadow Ridge at Oak Park Homeowners Association on August 15, 2025 alleging causes of action for failure to provide a habitable dwelling, breach of covenant and right to quiet enjoyment, private nuisance, unfair competition, negligence, and failure to return security deposit. Defendant Oak Summit filed an answer on October 13, 2025, and Shadow Ridge was dismissed on October 31, 2025. Finally, on July 30th and August 3rd 2026, counsel for Plaintiff were substituted out for counsel Ilya Signayevsky and Binh Bui with Plaintiff's consent.

On July 30, 2026, Plaintiff, now *in pro per*, filed this Motion for Order Authorizing Service of Summons and Complaint on Defendants Jianling Fang and Jinrui Zhang by Alternative Means, citing CCP §413.30. No proof of service was filed with the moving-papers. In short, Plaintiff argues that despite reasonable diligence through a registered process server on three days and times between July 21st and July 25th, she has been unable to effect personal service or substitute service on Defendants Jianling Fang and Jinrui Zhang. Supported by declaration of Plaintiff.¹

Plaintiff requests that the Court authorize service of the Summons, Complaint, Civil Case Cover Sheet, Notice of Case Assignment, ADR Information Sheet/ADR package, the Court's order on this Motion, and any other required initiating case documents on Fang and Zhang by, (i) mail to the Property via certified mail, return receipt requested, addressed separately to Defendants at 672 Indian Oak Lane, Unit 104, Oak Park, California 91377; and (ii) electronic mail service on Defendant Fang at fj12012@gmail.com, and on Defendant Zhang at zycool0987@gmail.com.

On August 14, 2026, Defendants, also *in pro per*, filed a Joint Special Declaration. They list "No. 168 Qiai Rd Unit 32-302, Shanghai, China 200000" as the address with the fj12012@gmail.com email address. They state that they are the "co-owning Defendants" and "formally oppose the Plaintiff's fraudulent service attempts" and "notify the Court of flagrant perjury committed by the process server." ¶1. They have "resided continuously in the People's Republic of China for several years and have not traveled back to the United States since our initial return to China." ¶2. The lawful occupant of the unit is Keith Anthony Foti, a Caucasian man. The court lacks personal jurisdiction because there has not been any valid personal or substitute service on them.

¹ Note that Plaintiff's separate request for judicial notice was not file-stamped by the court but asks the Court to notice the Assessor Records for the property, the recorded grant deed for the property, and the underlying Complaint. *The documents were attached to the proposed order, not the Request for Judicial Notice*

Also on August 14, 2026, Plaintiff filed a reply brief and the supplemental declaration of Christopher Clark showing that he mailed copies to the Oak Park address and emailed Defendants, and the supplemental declaration of Plaintiff regarding voicemail and text messages she received on August 12, 2026. Plaintiff argues that the claim of residence in China is contradicted by the property tax records, and the continued claim of a homeowner's exemption on the property. Here, email notice was clearly sufficient and the filing of the declaration itself may constitute a general appearance waiving a defect in service.

Analysis

All parties are acting *in pro per* which leads to some issues. For example, there was no proof of service filed with the Motion, and there is no evidence that it was served or filed 16 Court days before the hearing as required by CCP §1005(b). Therefore, the Court simply deny the Motion without prejudice (or continue the hearing). However, given that Defendants already responded by filing a joint "special declaration," and Plaintiff filed a responsive Reply, the Court could find the issue waived.

On the merits, effective January 1, 2025, Code Civil Procedure section 413.30 provides:

(a) (1) If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.

(2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.

Here, the Court does not believe that Plaintiff has met her burden of attempting to locate or serve Defendants. It seems fairly clear that the Defendants reside in China and it does not appear that there has been any attempt to serve them there. The three attempts to serve via personal service, five days apart, at the Oak Park address fail because Defendants do not reside there. Given the uncontested statement that they reside full-time in Shanghai, China, allowing service by mail at an address in California would not be reasonably calculated to give them actual notice.

The Hague Convention applies because the evidence submitted supports that Defendants reside in China, and China is a signatory to the Hague Convention. (Code Civ. Pro., § 413.10, subd. (c); "Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, Nov. 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638. The Hague Convention has its own service requirements. (Denlinger v. Chinadotcom Corp. (2003) 110 Cal.App.4th 1396, 1399.) Although the Convention does not apply when parties have agreed to waive formal service of process in favor of a specified type of notification (see Rockefeller Tech. Invs. (Asia) VII v. Changzhou SinoType Tech. Co. (2020) 9 Cal.5th 125, 145), there is no indication of any such waiver here. Thus, a law exists for the service of summons in the instant action, and alternative service cannot be granted at this point absent establishing attempt to comply with the Hague or evasion. There is no showing of any attempt to comply with the Hague Convention.

There is also no indication that Defendants are attempting to evade service, they simply live outside of the United States. The fact that the property is occupied by a renter of the Defendants does not make service on them appropriate at that location. There is no evidence that other searches were made for Defendants proper physical address, (was there any attempt to request their physical address by email, for example?) and indeed Plaintiff now has an address for them listed on their special declaration.

Proper service at the Shanghai address should be attempted first before resorting to this relief. It appears that the summons and complaint will need to be submitted to the Chinese central authority, for it to serve Defendants.

When/if this Motion is back before the Court, note that federal courts have found that:

“The Hague Service Convention does not prohibit service by email. Further, not listing e-mail as an accepted method of international service “does not constitute an express rejection of service by e-mail.” *Godfrey v. Princess Cruise Lines, Ltd.*, No. CV-15-01975-MWF-PLAX, 2016 WL 11756851, at *2 (C.D. Cal. June 17, 2016) (approving order of service by email despite country not listing e-mail as accepted method of service).” (*Dolls Kill, Inc. v. Yunye Apparel Retail Ltd.* (C.D. Cal., Aug. 16, 2023, No. 223CV01979HDVJPR) 2023 WL 6192699, at *1)